

(37)

Tentative Ruling

Re: **California Department of Public Health v. Prestige Biotech, Inc.**
Superior Court Case No. 24CECG02431

Hearing Date: June 3, 2026 (Dept. 403)

Motion: By Petitioner California Department of Public Health for
Judgment of Condemnation

Tentative Ruling:

To grant. The court shall retain jurisdiction as to the costs of suit and costs of destruction of the embargoed medical devices. Petitioner is to file an amended proposed judgment to address the court's continuing jurisdiction and to amend paragraph four, line 25 to change "111985" to 111895.

Explanation:

The California Department of Public Health seeks a judgment of condemnation and destruction as to embargoed articles pursuant to Health and Safety Code sections 111880, 111885, and 111895. Health and Safety Code¹ section 111880 provides authority for the Department of Public Health to commence proceedings for condemnation of food, drugs, devices, or cosmetics which are adulterated, misbranded, falsely advertised, or where the sale of which is in violation of the Sherman Food, Drug, and Cosmetic Laws. Section 111885 articulates that where the court finds an embargoed item is adulterated or misbranded, then it shall be destroyed at the expense of the claimant or owner. The costs and fees incurred by the department in investigating and prosecuting the action are to be taxed against the claimant or owner or the agent of said claimant or owner. Section 111895 provides for condemnation by the court for devices which fall under the above described provisions. The court finds that the devices at issue were adulterated and misbranded as they were manufactured without a license and not in compliance with good manufacturing practices, are of a lesser quality than represented, and were held under conditions of filth. As such, the court grants an order of condemnation and for destruction of the devices.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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Issued By: Img on 6-2-26.
(Judge's initials) (Date)

¹ All references to code sections are to the Health and Safety Code section unless otherwise stated.